Statement of Work

1.0 Master Agreement

1.1 Supplier Information

NIHVA Technologies Pvt. Ltd.
187, G-Block, Thermax chowk, MIDC
Chinchwad, Pune – 411019
Santosh Bangar
Contact NO. : 9168938333
Email Address: service@nivha.com

1.2 Purchaser Information

GKN Fokker Elmo India Pvt. Ltd,
Embassy Industrial Park, Block G
Plot no A-79, Chakan industrial area Phase 2,
Village Savardari, Pune 410501.

1.3 Professional Services Agreement

This Statement of Work is entered into pursuant to the Professional Services Agreement, dated **30-June-2020**, between **NIHVA** and GKN, the provisions of which are incorporated herein by reference.

1.4 Parties

Unless the context otherwise indicates, in this document, the words "we", "our" or "us" refer to the Purchaser, and the words "you" or "your" refer to the Supplier.

2.0 Products and/or Services

2.1 Services

The services you agree to provide to us from time to time are listed in the Pricing Exhibit.

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2.2 Changes and Maintenance

We and you may jointly agree to changes to the Pricing Exhibit from time to time. We will maintain the most recent version of the Pricing Exhibit and will provide you a copy when you request.

3.0 Prices and Payment Terms

3.1 Pricing

The initial prices for the Services are listed in the Pricing Exhibit and will remain fixed for a period of at least one year from the date this Agreement is executed. After the first year, you may propose changes to the prices, not more frequently than annually, by presenting the changes to us in writing at least 60 days before the change would take effect. You will use reasonable efforts to offset any material price increases before proposing any price increase to us and provide us with appropriate supporting documentation for any proposed price change. All amounts in the Pricing Exhibit include any applicable taxes, unless specified otherwise.

3.2 Invoicing and Payment

You will issue invoices to us **(Visit Basis)** which will contain all applicable legal and tax requirements. We will pay the invoiced amount (other than any amount we dispute in good faith) within 30 days of our receipt of the invoice.

Your acceptance of payment of the invoiced amount will waive any claims you may have for payment for the Products or Services covered by the invoice.

No invoice will be paid without a matching Purchase Order and goods receipts.

3.3 Invoice Detail

Each of your invoices must include the following information:

- P.O number
- Delivery Bill number
- Detail of delivered products/Services with unit prices
- Delivered quantities per product
- Terms of delivery
- Terms of payments
- Delivery date
- All tax and legal requirements pursuant to applicable laws

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3.4 Set-offs

We may reduce or withhold payment to you for any amount that you owe us or if you fail to pay any third parties for labor, materials, or other costs you incur in the performance of this Agreement.

4.0 Term and Termination

4.1 Term

This agreement will be in effect from the date of last signature and will remain in effect until terminated by you or us.

4.2 Termination by Supplier

You may terminate this Agreement at any time by notifying us in writing. Such termination will be effective 30 Days after we receive your notice or such later date as you may specify in your notice.

4.3 Termination by Purchaser

We may terminate this Agreement at any time by notifying you in writing. Such termination will be effective 30 Days after you receive our notice or such later date as we may specify in our notice.

4.4 Termination for Cause

You may terminate this Agreement if we have materially breached this Agreement by notifying us in writing. Such termination will be effective 30 Days after we receive such notice.

We may terminate this Agreement if you have materially breached this Agreement by notifying you in writing. Such termination will be effective 30 Days after you receive such notice or such later date as we may specify in our notice.

4.5 Bankruptcy or Change in Control of Supplier

You will notify us immediately if you (or all or substantially all of your assets) become subject to any bankruptcy, receivership, insolvency or similar proceeding. You will give us at least 30 days' advance written notice of any change in control of you or any sale of all or substantially all of your assets. In either of such events, we will have the right to terminate this Agreement and the Master Agreement thereafter by notifying you in writing, and such termination will be effective on the date specified in our notice.

5.0 Order and Delivery Terms

5.1 Purchase Orders

We may issue Purchase Orders to you using any of the following methods:

- Electronic data interchange (EDI),
- Email or
- Any other method as we may both agree from time to time.

5.2 Order Confirmation

You will confirm your acceptance or rejection of a Purchase Order within **48 Hrs.** Of receipt. If we do not receive your acceptance or rejection within that timeframe, you will be deemed to have accepted the Purchase Order.

You must send your acceptance or rejection to us by the same method as we sent you the Purchase Order.

Each of your acceptances must include the following information:

- your name and address
- our purchase order number

5.3 Order Modifications

Once we have submitted a Purchase Order, we may cancel or change the Purchase Order upon notice to you as long as the amount of time remaining to the delivery time specified on the Purchase Order exceeds the applicable lead time specified in the Pricing Exhibit. We will negotiate with you in advance any order drop ins or change requests that we make which do not comply with the specified lead times.
You will respond to our order modification requests within two business hours, and we will issue a new or revised Purchase Order as soon as we reach agreement on the modification.

5.4 Scheduling

You will provide us with sufficient advance notice of scheduled shutdowns, holidays and union contract expirations or renegotiations.

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6.0 Supplier's Performance

6.1 Contractor Environment Health and Safety Handbook

You acknowledge that you have received and read our Contractor Environment, Health & Safety Handbook, and you agree to comply with all of its provisions. We may update or modify the handbook at any time upon written notice to you, and you agree to comply with all of its provisions as updated or modified. In the event you believe there is a need to deviate from any provision of the handbook, you will notify the applicable GKN Project Manager and obtain his or her written approval before proceeding.

You agree that each of your employees who use any of our equipment will have been adequately trained on that equipment by you or on your behalf prior to use and, to the extent applicable, will be licensed or certified to use such equipment. Your employees may not use our equipment unless explicitly approved by the applicable GKN Project Manager and Corporate Health and Safety. You understand that any of your employees who use our equipment will be required to complete a sign a certificate of understanding in a form provided by us.
You understand and agree that all chemicals that you may bring on site to one of our locations must be disclosed to and approved by us in advance.

6.2 Employee testing

You will arrange for the following tests to be conducted for each employee who will perform services pursuant to this Agreement:

- Five panel hair test – drug testing
- Criminal background check – state and federal, felony and misdemeanor
- Motor vehicle record check
- Employment verification
- Education verification
- License/credential verification
- National credit file

You will be responsible for all costs associated with these tests. Any employee who does not successfully pass all of the required tests will not be allowed to perform services for us.

6.0 Key personnel

The following individuals are considered key personnel for the relationship covered by this Agreement:

[Mr. Santosh Bangar]

You will notify us immediately of any departure of any key personnel from our account and consult with us in connection with their replacement.

6.1 Employee status

You will assign to us only individuals that are your employees and not independent contractors.

6.2 Independent contractor

You will require all your employees assigned to us to sign a statement acknowledging they are an independent contractor, and nothing in this Agreement shall be deemed to make them our agent, employee or joint venture. They will not be entitled to any benefits that we provide our employees, including worker's compensation and unemployment insurance.

7.0 Insurance certificates

Service Engineer / Your Employee should have WC/ESIC policy.

8. 0 Intellectual Property

8. 1 Ownership of intellectual property rights

Subject to the provisions of the last paragraph of this section, you agree that all work you create for us pursuant to this Agreement is intended to be wholly owned by us, and you acknowledge and agree that you will retain no rights in intellectual property to such work unless we explicitly agree otherwise in writing.

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8.2

Standard Non- comprehensive AMC offer Servicing includes:

A. Mechanical: Check Points

1. Assembly checking.
2. Alignment.
3. Oiling/ greasing.
4. Other alignment & interlocking checking.
5. All Nuts-Bolts tightening.

B. Electrical: Check Points

1. Main electric connections with motor & control panel connections.
2. Limit Switch Setting.
3. Control Box: Connectors, relay, overhead protection, switches.

8.3

1. 4 visits in a 1 year (within 3 months 1 visit) & each visit we will submit you the above Check points reports.
2. Work Time duration : 9 Hrs./day
3. Emergency breakdown charges will be Rs.8,500/- Extra per visit and Intimation for breakdown calls – minimum 24 Hours
4. 2 Free Breakdown per year
5. Forklift and Scaffolding need to arrange by you
6. Hydraulic oil & grease for servicing/lubrication work will be in your scope

Annexure

Sr. No	Description	Amount (Annual) INR
1	Annual Maintenance Contract for Rolling Shutter & Dock Leveler at GKN PUNE	50,000/-

9.0 **Dispute Resolution**

We both agree that any dispute arising out of this Agreement will be promptly negotiated between our respective executives who have authority to settle the dispute.

Date this Agreement takes effect: 01-July-2020 to 30-June-2021

Name: SANTOSH BANGAR
Service Dept..
9168938333.

Its: _____

Signed: _____ 03/07/2020.

Name: _____

Signed: _____

1. COMPLIANCE WITH LAW AND ANTI-CORRUPTION POLICY

The Service Provider states and agrees that it has not, and will not, in the course of conducting business for GKN Fokker Elmo India Pvt. Ltd:

(a) violate any applicable Anti-Bribery policies and Anti-Bribery laws; or
(b) offer, promise, give or agree to receive or accept any unlawful Bribe, rebate, pay-off, influence payment, kickback, or other unlawful payment (including Facilitation Payments).

The Service Provider shall make its books and accounting records relating to provision of Services available to GKN Fokker Elmo India Pvt. Ltd at its request. If the Service Provider or any of its affiliates, group companies, sub-contractors, agents, or representatives breaches this representation and/or is charged with or investigated in relation to or engages in any conduct that may constitute an offence under the Anti-Bribery Laws, GKN Fokker Elmo India Pvt. Ltd shall have the right unilaterally to immediately suspend payment or terminate this Agreement or to take other appropriate action in accordance with the terms of this Agreement.

2. CONFIDENTIALITY

The Service Provider undertake to maintain strict confidentiality and secrecy in respect of the Services, handled by them under the terms of the Agreement; The Service Provider agree that he will hold in confidence the terms and conditions of this Agreement, all information, documentation etc. of a confidential or proprietary nature which comes to their knowledge in the course of the Agreement ("**Confidential Information**") and will not disclose to any third party or use Confidential Information or any part thereof without the other Party's prior written consent provided that Confidential Information may be disclosed to any governmental or regulatory authority requiring such disclosure under law, regulations or rules of an applicable stock exchange.

3. CODE OF CONDUCT

The Service Provider agrees to fully comply with the GKN Fokker Elmo India Pvt. Ltd 'code of business conduct' policy, and such other policies as may be applicable from time to time. Service Provider is committed to conducting business in strict accordance with GKN Fokker Elmo India Pvt. Ltd code of business conduct. It is deemed and understood that the Service Provider has read and is fully conversant with the contents of GKN Fokker Elmo India Pvt. Ltd code of business conduct, and has unequivocally and unconditionally accepted the same.

4. DISPUTE RESOLUTION AND GOVERNING LAW

(i) Any dispute arising between Service Provider and GKN Fokker Elmo India Pvt. Ltd arising out of or in connection with this Agreement, shall initially be resolved by amicable negotiations amongst senior executives of the Parties and, if not resolved through such negotiations within 30 (Thirty) days of written notice of the existence of such dispute, be finally settled by binding arbitration as per the provisions of the Arbitration and Conciliation Act, 1996 as amended from time to time, by a tribunal



comprising 3 (Three) arbitrators. Each Party to the arbitration shall appoint 1 (One) arbitrator and the 2 (Two) arbitrators thus appointed shall appoint the third arbitrator who will act as a presiding arbitrator of the tribunal (together forming the "**Arbitral Tribunal**");

(ii) The seat and venue of arbitration shall be Pune, India and it shall be conducted in the English language;

(iii) During the arbitration, the Parties shall continue to fulfil their respective obligations under this Agreement except for such obligations, which are the subject matter of the arbitration;

(iv) The arbitral award shall be in writing, state the reasons for the award, and be final and binding on the Parties concerned. The award may include an award of costs, including reasonable attorneys' fees and disbursements;

(v) This Agreement shall be governed by the laws of India. In respect of all matters arising out or relating to this Agreement, the courts at Pune, India shall have exclusive jurisdiction.

10. GENERAL CLAUSES

(i) Assignment

Neither Party may assign its rights and remedies nor transfer its obligations under this Agreement without prior written consent of the other Party, except that GKN Fokker Elmo India Pvt. Ltd may so assign to any of its affiliated or subsidiary companies, franchisee without such consent. In any event, any assignment or transfer shall not operate to relieve the assigning Party of any of its obligations here under, nor will any such assignment impose any obligation on the assignee except in the case of an express written assumption by the assignee.

(ii) Notices

Any notice, demand or communication required or permitted to be given, or made under this Agreement shall be in writing and shall be served to the GKN Fokker Elmo India Pvt. Ltd address mentioned first hereinbefore, and to the Service Provider at its address mentioned first hereinbefore. Either Party shall notify to the other in writing of any change in such address for Services of notice upon it. The notices shall be delivered personally, or by legible fax, or by registered post (with recorded proof of delivery).

(iii) Waiver

Failure to enforce compliance with any term or condition of this Agreement shall not constitute a waiver of such term or condition of this Agreement or the right to subsequently enforce such term or condition in the future. No waiver, by either Party, of any provision of this Agreement shall, in any event, become effective unless the same shall be in writing and such waiver shall be effective only in the specific instance described and for the purpose that the waiver is given.

23/07/2020

(iv) Severability

If any part or any provision of this Agreement is or becomes illegal, invalid or unenforceable, that part or provision shall be ineffective to the extent of such invalidity or unenforceability only, without in any way affecting the validity or enforceability of the remaining parts of said provision or the remaining provisions of this Agreement. The Parties hereby agree to attempt to substitute for any invalid or unenforceable provision with a valid or enforceable provision, which achieves to the greatest extent possible the economic, legal and commercial objectives of the invalid or unenforceable provision.

(v) Force Majeure

No failure or omission by either Party to carry out or observe or perform any of the terms and conditions of this Agreement (other than any payment obligation) shall give rise to any claim against such Party or be deemed a breach of this Agreement if such failure or omission arises from an act of God, an act or omission of Government, war or military operations, national or local emergency, acts or omissions of Government, fire, lightning, explosion, flood, subsidence, inclement weather, acts or omissions of persons or bodies for whom the Party is not responsible or any other cause whether similar or dissimilar outside such Party's control.

(vi) Partnership, Joint Venture or Agency

This Agreement is on a Principal-to-Principal basis and does not create any partnership, joint venture or an agency between the Parties. No Party shall, by virtue of this Agreement have the power or authority to enter into any agreement or undertaking for, or to act on behalf of or otherwise to bind the other Party as to any matter or thing.

(vii) Entire Agreement

This Agreement, including the relevant Annexes hereto represents the entire agreement between the Parties and supersedes and cancels all previous negotiations, agreements or commitments (whether written or oral) with respect to the subject matter hereof. This Agreement is executed by the authorized representatives of both the Parties.

(viii) Amendment

All amendments or modifications to this Agreement shall be valid and effective only through a written instrument agreed and signed by both the Parties.

(ix) Counterparts

This Agreement is being executed in 2 (Two) counterparts, each of which when executed and delivered shall constitute an original copy of this Agreement, but together shall constitute as one and only Agreement.



03/07/2020

Signature of Service Provider

Signature of GKN Fokker Elmo India Pvt. Ltd

(x) Survival of Obligations

The obligations of the Service Provider which under the Agreement by virtue of their nature would continue beyond the termination; cancellation or expiration of the Agreement shall survive the said termination; cancellation or expiration.

(xi) Intellectual Property Rights

Service Provider agrees that any trademarks, logos, trade names and/or identifying slogans, which are the property of GKN Fokker Elmo India Pvt. Ltd, cannot be used by Service Provider for any purpose which is not authorized in writing by GKN Fokker Elmo India Pvt. Ltd.

Neither party shall publish, nor cause to be published any advertisement or make any representations oral or written which might confuse, mislead or deceive the public which are detrimental to the trade name, goodwill or reputations of the other party.

GKN Fokker Elmo India Pvt. Ltd may withdraw the permission for the usage of its Intellectual Property rights, trademarks, logos, trade names and/or identifying slogans, which it may have granted in writing at any time during the subsistence of this Agreement.

(xii) Obligations and Rights of Service Provider

Service Provider should carry out the services with due diligence in a proper and professional manner, exercise proper care, skill & attain professional standards generally required in the provision of services by properly trained & supervised employees of Service Provider and shall ensure that all its employees/representatives conduct themselves in lawful manner. Service Provider shall take all reasonable steps to ensure safety of all data, documents or information related to the activates and employees of GKN Fokker Elmo India private limited, which are received by them or come into their possession. Service Provider shall ensure that it carries out the services as stipulated in this agreement and as per the mutually agreed time schedule and that while performing the said services, all personnel and other policies/practices of GKN Fokker Elmo India private limited shall be followed. Service Provider shall install the requisite hardware and software required for the provision of services to maintain back up.

The "General Terms and Conditions of Purchase of Fokker ELMO B.V." shall apply to all transactions regarding the sale and purchase of goods or services between Supplier and
GKN Fokker Elmo India Private Limited. A copy of these Terms and Conditions can be downloaded at our website:
https://www.gknaerospace.com/en/Utilities/gkn-aerospace-suppliers/fokker/#anchoritem6

or can be made available upon request

The delivery of goods ordered by GKN Fokker Elmo India Private Limited shall be in

accordance Fokker Elmo's Delivery Instructions. A copy of these Delivery Terms can be downloaded at our website: https://www.gknaerospace.com/en/Utilities/gkn-aerospacesuppliers/fokker/#anchoritem6

Compliance with trade, export and arms control shall apply to all transactions of GKN Fokker Elmo India Private Limited. requiring the export of items (e.g. goods, information). The Export Control Classification Declaration (ECCD) form is required to be filled out and enclosed within the response to this e-mail for any item subject to Export Control Regulations requested by the originator of this e-mail and will serve to ensure proper procedures to be executed.

The ECCD form can downloaded at our website:
https://www.gknaerospace.com/en/Utilities/gkn-aerospace-suppliers/fokker/#anchoritem6 or can be made available upon request.

Supplier Quality Assurance Requirements.
The latest revision of these documents can be downloaded at our website:
https://www.gknaerospace.com/en/Utilities/gkn-aerospace-suppliers/fokker/#anchoritem6
or can be made available upon request.

Signature of Service Provider

03/07/2020

Signature of GKN Fokker Elmo India Pvt. Ltd